

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Charis Jones	Team: Squad #03	CCRB Case #: 202102812	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/25/2020 5:28 PM	Location of Incident: Inside of the Transit Borough District 4 stationhouse		18 Mo. SOL 5/4/2022		Precinct: 13
Date/Time CV Reported Wed, 04/28/2021 12:01 PM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Wed, 04/28/2021 3:31 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Shimul Saha	08443	967680	TB DT04

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Adonis Long	02881	936972	TB DT04

Officer(s)	Allegation	Investigator Recommendation
A . POM Shimul Saha	Abuse of Authority: Police Officer Shimul Saha provided a false official statement on § 87(2)(b) Criminal Court Complaint.	A . Unsubstantiated

Case Summary

On April 28, 2021, § 87(2)(b) filed this complaint via email on behalf of § 87(2)(b) § 87(2)(b) § 87(2)(b) is § 87(2)(b) § 87(2)(b) civil attorney.

On May 25, 2020, at approximately 5:28 p.m., inside the Transit Bureau District Transit 4 stationhouse in Manhattan, Police Officer Shimul Saha of the same command spoke with Assistant District Attorney (ADA) Constantine Coritsidis of New York County about an incident that occurred earlier the same day at approximately 12:50 a.m., which involved § 87(2)(b) § 87(2)(b) and Police Officer Adonis Long assigned to the same command. During this conversation, PO Saha allegedly provided an untruthful statement that was reflected in § 87(2)(b) § 87(2)(b) Criminal Court Complaint (**Allegations A: Untruthful Statement, Unsubstantiated**).

During the earlier incident, § 87(2)(b) § 87(2)(b) was arrested for § 87(2)(b) § 87(2)(b) (Board Review 01).

The investigation obtained body-worn-camera (BWC) recordings of all the officers who responded to the incident from which the Criminal Court Complaint stemmed. PO Saha's footage most clearly captured the related incident in its entirety (Board Review 02). § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Shimul Saha provided a false official statement on § 87(2)(b) § 87(2)(b) Criminal Court Complaint.

The following facts are undisputed (Board Review 02): On the incident date, PO Long and PO Saha ordered § 87(2)(b) § 87(2)(b) to exit the north bound 6 train at the 51st Street subway station in Manhattan. § 87(2)(b) § 87(2)(b) exited the train and reentered the adjacent subway car. PO Saha and PO Long followed. PO Saha ordered § 87(2)(b) § 87(2)(b) to step off the train numerous times and § 87(2)(b) § 87(2)(b) refused to do so. PO Long eventually approached § 87(2)(b) § 87(2)(b) and ordered him to step off the train numerous times. § 87(2)(b) § 87(2)(b) refused to exit the train. PO Long reached his right hand toward § 87(2)(b) § 87(2)(b) items that were on the seat next to him. § 87(2)(b) § 87(2)(b) slapped PO Long's hand away from his belongings. PO Long reached both hands towards § 87(2)(b) § 87(2)(b) a second time and § 87(2)(b) § 87(2)(b) leaned his body away from PO Long. PO Long then grabbed § 87(2)(b) § 87(2)(b) left bicep. § 87(2)(b) § 87(2)(b) put his right hand on top of PO Long's hand, said "Don't touch me," and pulled his arm free of PO Long's grasp. PO Long then punched § 87(2)(b) § 87(2)(b) in the face twice with a closed fist and pulled § 87(2)(b) § 87(2)(b) by the arm and collar off the train. PO Long grabbed the back of § 87(2)(b) § 87(2)(b) neck and threw § 87(2)(b) § 87(2)(b) onto the platform where § 87(2)(b) § 87(2)(b) landed on his back. PO Long subsequently pepper sprayed § 87(2)(b) § 87(2)(b) twice and pulled § 87(2)(b) § 87(2)(b) hair. A physical struggle between § 87(2)(b) § 87(2)(b) and PO Long ensued, during which PO Long and PO Saha attempted to handcuff § 87(2)(b) § 87(2)(b). During this time, § 87(2)(b) § 87(2)(b) kicked his legs as the officers attempted to secure them. § 87(2)(b) § 87(2)(b) was eventually handcuffed. § 87(2)(g)

§ 87(2)(b) (Board Review 03) testified that he was not present for the events that transpired on May 25, 2020 between § 87(2)(b) § 87(2)(b) PO Saha, and PO Long. However, he believed that PO Saha lied in § 87(2)(b) § 87(2)(b) Criminal Court Complaint about what took place during the incident. § 87(2)(b) § 87(2)(b) stated that in the Criminal Court Complaint, PO Saha swore that he was told by PO Long that PO Long injured his finger while wrestling with and rolling around with § 87(2)(b) § 87(2)(b) on the subway platform. As a result of those statements, § 87(2)(b) § 87(2)(b) was charged with § 87(2)(b) § 87(2)(b).

§ 87(2)(b) believed that the video from the officers' BWCs shows that no such event happened and that what is clear is that PO Long punched § 87(2)(b) § 87(2)(b) elbowed him in the head, and pepper sprayed him. § 87(2)(b) stated that at no point did § 87(2)(b) § 87(2)(b) assault, fight, or roll around on the platform with anybody nor was there any kind of conduct that could have been mistakenly viewed as that. § 87(2)(b) stated that PO Long lied to PO Saha when he said he was assaulted by § 87(2)(b) and PO Saha lied when he claimed this happened based on PO Long's statement. § 87(2)(b) stated that both officers were on the platform with § 87(2)(b) § 87(2)(b) and both officers understood that this did not happen. § 87(2)(b) stated that both officers were comfortable lying to prosecutors stating that it did happen, which ultimately resulted in § 87(2)(b) § 87(2)(b) prosecution.

PO Saha (Board Review 04) testified that he did not know at what point during this incident PO Long injured his hand, however, he believed it may have been when PO Long punched § 87(2)(b). PO Saha learned that PO Long was injured when an ambulance was called for PO Long at the scene. Later the same night, PO Long returned to the command from the hospital. PO Saha observed that PO Long's hand was in a bandage. On the same night, PO Saha and PO Long spoke briefly about the injury PO Long sustained while PO Saha filled out PO Long's Line of Duty Injury paperwork. PO Saha did not learn specifically how PO Long injured his hand but knew that it happened at some point during the incident. The ADA assigned to § 87(2)(b) case called PO Saha on the incident date after PO Saha submitted § 87(2)(b) arrest paperwork. The ADA wanted PO Saha to explain what happened during the incident. No one else was present during that phone conversation. PO Saha told the ADA that he did not know at which point or exactly how PO Long injured his hand but suspected that it may have been when § 87(2)(b) slapped his hand when PO Long attempted to remove him from the train. PO Saha told the ADA that § 87(2)(b) "shoved" PO Long, which he confirmed was in reference to when § 87(2)(b) slapped PO Long's hand. PO Saha could not initially recall if he told the ADA that § 87(2)(b) and PO Long were wrestling or grappling on the floor. After the ADA drafted a copy of the criminal court complaint, he sent it to PO Saha. PO Saha read the complaint and signed it.

PO Long (Board Review 05) testified that he sustained his hand injury when § 87(2)(b) kicked him while he and PO Saha attempted to secure him on the platform. PO Long showed PO Saha his hand on scene because his hand had swollen up. PO Long did not explain the details surrounding his injuries to PO Saha on the night of the incident and he did not recall having a specific conversation with PO Saha outlining exactly how he sustained the injury. Upon returning to work after being out due to his injury, PO Long informed PO Saha about the injuries to both his shoulder and his hand. PO Long stated that months after the incident, he and PO Saha went to court to speak with an ADA regarding § 87(2)(b). PO Long and PO Saha spoke with the ADA separately. During his meeting with the ADA, PO Long reviewed the Criminal Court Complaint against § 87(2)(b). PO Long stated that he would characterize that what happened between him and § 87(2)(b) as “tussling and grappling on the floor.” PO Long was not present when PO Saha spoke with the ADA on the phone on the night of the incident.

PO Saha's BWC footage, located in IA #101, showed PO Long's entire interaction with § 87(2)(b) (Board Review 02). At 01:20, § 87(2)(b) gathers his belongings, exits the train, and reenters the adjacent subway car. PO Saha and PO Long follow him and enter the train. At 01:38, PO Saha approaches § 87(2)(b) and tells him to get off the train. § 87(2)(b) responds, "I am not getting off the train because you're telling me to get off the train. Why am I the only person that has to get off?" PO Saha tells § 87(2)(b) that he wants to talk to him and asks him to step off the train again. At 02:03, PO Long can be seen on the far side of the subway car. PO Long yells, "Step off the train!" § 87(2)(b) yells back, "I am not getting off the train." PO Long says, "Step off or I'm going to drag you off, step off or I am going to drag you off." § 87(2)(b) repeats that he is not going to step off the train. At 02:18, § 87(2)(b) says, "You can't arrest me for not wanting to get

off the train.” At 02:24, PO Longs approaches § 87(2)(b) and says, “Get off the train. You are holding up the train for all of these people that are trying to go home.” § 87(2)(b) says, “How am I holding up the train when I am sitting here trying to go to Brooklyn.” At 03:11, PO Long reaches his right hand toward § 87(2)(b) items that are on the seat next to him. § 87(2)(b) slaps PO Long’s hand away from his bags. PO Long reaches both hands towards § 87(2)(b) and § 87(2)(b) pulls away from PO Long. At 03:15, PO Long grabs onto § 87(2)(b) left bicep. § 87(2)(b) puts his right hand on top of PO Long’s hand, says “Don’t touch me,” and pulls his arm free of PO Long’s grasp. PO Long punches § 87(2)(b) in the face twice with a closed fist and pulls § 87(2)(b) by the arm and collar off the train. § 87(2)(b) yells, “Stop,” lowers his head, and pulls his body away from PO Long. PO Long grabs the back of § 87(2)(b) neck and says, “Get off the fucking train.” PO Long throws § 87(2)(b) onto the platform where he lands on his back. At 03:37, § 87(2)(b) stands up and PO Saha walks him to the wall opposite of the train tracks. At 03:47, § 87(2)(b) starts walking down the platform, away from PO Saha. PO Long approaches § 87(2)(b) and yells, “Sit down! Sit down!” § 87(2)(b) cries, “Why you fucking hit me?” PO Long says, “Sit. Down.” PO Long orders § 87(2)(b) to sit down on the floor. § 87(2)(b) remains standing. At 04:02, PO Long unholsters his pepper spray. § 87(2)(b) asks PO Long again why he hit him. PO Long orders § 87(2)(b) to sit on the floor. At 04:11, PO Long deploys his pepper spray into § 87(2)(b) face. At 04:14, PO Long deploys his pepper spray at § 87(2)(b) a second time. § 87(2)(b) turns away from PO Long, cries “Stop,” and covers his head with his hands as he walks away from the officers down the platform. PO Long runs after § 87(2)(b). § 87(2)(b) squats on the ground with his head down and cries. At 04:29, § 87(2)(b) stands up and PO Saha holds him face-first against the wall. At 04:55, PO Longs says, “Put your hands behind your back.” PO Saha and PO Long attempt to place § 87(2)(b) into handcuffs. § 87(2)(b) cries, “Stop,” and twists his body and hands away from the officers. At 05:16, § 87(2)(b) says, “I can’t breathe.” At 05:28, § 87(2)(b) is placed into handcuffs and PO Saha holds him face-first against the wall. At 06:08, PO Saha tells § 87(2)(b) to not resist. § 87(2)(b) continues to cry and attempts to walk away from where he is standing. At 06:41, the officers force § 87(2)(b) to sit on the ground by pushing him down. At 07:53, PO Saha walks towards the end of the platform and gathers § 87(2)(b) items. § 87(2)(b) can be heard yelling “God, please!” in the background. At 08:44, PO Long is captured holding § 87(2)(b) on the ground by putting his hand on § 87(2)(b) neck. At 09:04, PO Long continues to hold § 87(2)(b) down but pushing his hand onto § 87(2)(b) neck. At 09:14, PO Saha attempts to secure § 87(2)(b) legs. At 09:25, § 87(2)(b) is on his back and PO Long has his right hand around § 87(2)(b) neck. § 87(2)(b) face is bleeding. At 09:37, § 87(2)(b) kicks his legs as the officers attempt to secure them. It is unclear if § 87(2)(b) feet make physical contact with PO Long or PO Saha. At 09:59, § 87(2)(b) is seated in an upright position. Three additional officers arrive at the location and tell § 87(2)(b) to calm down. PO Saha tells § 87(2)(b) that the ambulance is on its way. § 87(2)(b) yells that his eyes hurt and that he is “sorry.” From 12:31 to 16:38, PO Saha, PO Long, and other officers keep § 87(2)(b) seated on the ground. § 87(2)(b) yells that his back is in pain and the officers eventually place him on the ground stomach-first where he remains until EMS arrives. EMS arrives at 26:50 and § 87(2)(b) is put onto a stretcher.

The Criminal Court Complaint, prepared by New York County ADA Coritsidis and signed by PO Saha, notes that § 87(2)(b) was being charged with one count of § 87(2)(b) and that the following was PO Saha’s testimony about what had occurred (Board Review 06). PO Saha stated, “§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

After reviewing the Criminal Court Complaint, PO Saha stated that “wrestling and grappling” was in reference to when § 87(2)(b) was kicking his legs while PO Saha and PO Long attempted to secure him on the ground (Board Review 04). PO Saha stated that when he testified that he was “informed by PO Long that during the above-described conduct, the defendant kicked his right hand,” he was speaking about when PO Long told him after the incident that he had sustained his hand during the incident. PO Saha did not personally observe or know exactly how PO Long sustained the injury to his hand.

After reviewing the Criminal Court Complaint, PO Long confirmed that it was an accurate description of what occurred between himself and § 87(2)(b) (Board Review 05). PO Long stated that he did not recall having a specific conversation with PO Saha outlining exactly how he sustained the injury.

NYPD Patrol Guide 203-08 states that officers are prohibited from making false official statement, and will be subject to disciplinary action, up to and including the dismissal. Intentionally making a false official statement regarding a material matter will result in dismissal from the Department, absent exceptional circumstances (Board Review 09).

The BWC shows PO Long physically engaged with § 87(2)(b) for an extended amount of time. During this time, PO Long punched § 87(2)(b), threw § 87(2)(b) to the ground, pepper sprayed § 87(2)(b), pulled § 87(2)(b) hair, and put his hands on § 87(2)(b) neck. The footage also shows § 87(2)(b) initially moving away from PO Long on the train, pushing PO Long’s hand away from him, kicking his legs as PO Long and PO Saha attempt to secure him on the platform, and physically struggling with PO Long on the ground. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 10).
- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in 11 of allegations (Board Review 11):
 - § 87(2)(b)
- PO Saha has been a member of service for two and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming false arrest and imprisonment, excessive detention, assault, battery, trespass on the person, trespass to chattels, conversion, malicious use and abuse of process, malicious prosecution, malicious and retaliatory prosecution, intentional infliction of emotional distress, negligent infliction of emotional distress, negligence, negligent hiring, screening, retention, supervision, and/or training, and denial of rights to communicate by phone while in custody. In the “Total Amount Claimed” field of the claim, it says \$0.00. § 87(2)(b) wrote that § 87(2)(b) damages were not zero, but the field would not permit an entry stating that § 87(2)(b) damages would be determined by a jury. A 50H hearing inquiry was submitted electronically and will be submitted upon receipt. (Board Review 14).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 3

Investigator: Charis Jones Inv. Charis Jones 03/02/2022
Signature Print Title & Name Date

Squad Leader: Olga Golub IM Olga Golub 03/02/2022
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date